Justice the Law Couldn't Give: An Analysis of the Psychology of Killing One's Rapist

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1. ABSTRACT

What happens when a survivor kills the person who sexually assaulted them? The killing becomes the subject of a criminal case, but understanding it also requires looking at what happened before it. This paper examines the difficult questions that arise when a person who has experienced sexual violence is later accused of taking their assailant's life.

Drawing on psychological research, Indian criminal law, and selected Indian and international cases, the paper explores trauma, revenge motivation, and the belief that justice is out of reach. It distinguishes killings committed in self-defence from acts of retaliation and considers how intention, planning, and psychological evidence affect the assessment of responsibility. It also examines competing ideas of justice: whether punishment should reflect what an offender deserves, prevent further harm, or address the needs of the survivor.

The discussion argues that neither the original assault nor the later killing should erase the other from consideration. A survivor's experiences matter, but they do not produce one automatic legal or moral answer. The paper proposes more accessible support, trauma-informed procedures, and greater accountability for failures of protection. Its central concern is how justice can respond fairly to a survivor's actions without overlooking the violence they experienced.

2. INTRODUCTION

Sexual assault involves sexual contact without consent, including non-consensual kissing, groping, and penetration. It can affect people of any gender identity, sexual orientation, race, ethnicity, socioeconomic status, or religion. The perpetrator may be a stranger or someone the survivor knows and trusts. Sexual assault may involve force, threats, coercion, or exploitation of a person's inability to consent. Coercion can take the form of pressure, intimidation, or manipulation, while alcohol or other drugs may be used to impair a person's capacity to consent.

Sexual assault falls within the broader concept of sexual violence, which also encompasses sexual harassment and other forms of sexual harm. Its consequences can extend far beyond the immediate incident, affecting survivors' physical health, psychological well-being, relationships, and sense of safety. Although individual responses vary, the experience can profoundly disrupt a person's trust in others and sense of control over their own life. Many survivors carry this burden in silence, fearing disbelief, stigma, or judgment. These difficulties raise a further question: what happens when a survivor seeking protection and accountability believes that the criminal justice system cannot—or will not—provide justice?

This paper examines the psychological aftermath of sexual assault and the circumstances in which a survivor may contemplate or commit lethal violence against their perpetrator. Drawing on psychological research, it explores trauma, anger, emotion regulation, revenge motivation, perceived injustice, acute stress responses, and institutional betrayal. It considers the possible role of heightened physiological arousal, without treating trauma as an inevitable pathway to violence. It also examines the psychological and legal consequences of retaliatory killing.

This question raises further concerns about the relationship between personal suffering and the state's authority to punish. On what grounds does the state claim the exclusive right to administer punishment when the harm has been endured by the survivor? Should courts show leniency towards survivors who kill their assailants, and how should trauma, continuing threats, and institutional failures inform assessments of culpability?

Through psychological, legal, and philosophical analysis, this paper examines the distinction between self-defence and retaliation, as well as the difference between understanding violence and justifying it. It also considers trauma-

informed approaches to criminal investigations and trials, asking how the law can recognise survivors' experiences while maintaining principles of accountability and due process.

3. WHY IT HAPPENS?

"If you don't really understand perpetrators, you're never going to understand sexual violence."[1]

Rape and sexual violence are not simply about sexual desire. They are acts of violence that can be used to exert power and control over another person. Research has linked childhood sexual, physical, or emotional abuse with a greater risk of later abusive behaviour or further victimisation. However, these outcomes are not inevitable, nor can they be neatly divided into boys becoming abusers and girls becoming victims again.

Childhood trauma alone does not explain why some men rape. There is no single cause, but contributing factors include sexual entitlement, hostility towards women, a disregard for others, and acceptance of violence. Some perpetrators believe that their sexual desires take priority over another person's right to refuse. These beliefs can be reinforced by peers who excuse sexual aggression and social attitudes that treat women as inferior to men. Where sexual violence is tolerated and perpetrators face few consequences, there may also be fewer barriers to offending. Understanding why rape happens therefore requires looking at both the perpetrator's attitudes and the environment that allows those attitudes to go unchallenged. These factors help explain the behaviour; they do not excuse it or make it inevitable. Responsibility remains with the perpetrator.

Criminologists and psychologists have identified several motivations behind rape. Knight and Prentky (1990) identified four broad motivations: opportunity, pervasive anger, sexual gratification, and vindictiveness.

First, opportunistic rapists take advantage of a victim's isolation or vulnerability, acting on impulse to fulfil their sexual desires without consent.

Second, anger-driven rapists commit offences marked by intense aggression and sometimes severe violence, which can cause serious physical injury to the victim. They may also have a history of antisocial offending.

The third motivation is sexual gratification. Here, a distinction is made between sexually sadistic and sexually non-sadistic rapists. For sexually sadistic rapists, gratification is tied to the victim's suffering, degradation, or humiliation, alongside

1. Sherry Hamby ; psychology of violence, 'What Experts Know About Men Who Rape', (The New York Times, 30 October 2017)

fantasies of power and control. Sexually non-sadistic rapists are also driven by sexual fantasies and urges, but the victim's suffering is not what primarily arouses them.

Finally, vindictive rapists use rape as a tool for retaliation or revenge. The assault is intended to punish, degrade, or humiliate the victim. Sexual violence is also used as a means of punishment and terror in war, although its motives in that context can extend beyond personal revenge.

Another question is how perpetrators justify what they do. Some may blame the victim, minimise the harm, or treat their own sexual desire as more important than the other person's consent. Psychologists study these as offence-supportive beliefs. Blake and Gannon explored such beliefs in research on rape-prone men, although their findings cannot describe every perpetrator. This adds something that the categories alone cannot explain: what someone wants from an assault and how they justify committing it are connected, but different questions. A perpetrator may excuse their behaviour to themselves while still being responsible for it.

There is no single way to identify a rapist by their background. Perpetrators do not belong to one particular religion, socio economic group, or level of education. None of these characteristics alone tells us whether a person will commit sexual violence.

4. SEXUAL ASSAULT AFTERMATH – PSYCHOLOGY OF THE SURVIVOR

Sexual violence remains substantially underreported in India. After an assault, attention can shift from the perpetrator's actions to the survivor's behaviour: "What was she wearing?" "Why was she out so late?" "Was she asking for it?" These questions place responsibility on the person who was assaulted rather than the person who committed the assault. This is victim-blaming. In some families and communities, concern for family honour and marriage prospects takes priority over the survivor's wellbeing. Survivors may be pressured to remain silent or accept a settlement, and documented cases include pressure to marry the perpetrator. Such responses treat the assault as a source of shame for the survivor rather than wrongdoing by the offender.

Male survivors also face disbelief and harmful assumptions about gender and consent. Their experiences may be dismissed as something they should have enjoyed, making it harder to speak about what happened or seek support.

The effects of an assault can continue long after the immediate danger has passed. Ordinary places, smells, sounds, or situations may become reminders of what happened. Survivors may experience fear, confusion, anger, or helplessness, while others initially feel very little. Some feel detached from their body or surroundings, a response known as dissociation. A survivor who appears calm is not necessarily

unaffected, just as someone who struggles to describe the assault is not necessarily being evasive. There is no single way a person is supposed to behave after sexual violence.

In the early aftermath, these reactions may form part of an acute stress response. Where a particular pattern of symptoms lasts between three days and one month, it may meet the criteria for acute stress disorder. This is different from assuming that every distressed survivor has a psychological disorder. Some recover without developing a lasting condition, while others experience difficulties that continue beyond the first month and may meet the criteria for post-traumatic stress disorder, or PTSD.

PTSD can affect everyday life through unwanted memories, nightmares, avoidance of reminders, and a persistent feeling of being unsafe. A survivor may struggle to sleep, concentrate on work or studies, or feel comfortable with physical intimacy. Even when they know that the assault is over, reminders can bring back a strong sense of fear. These experiences do not affect everyone in the same way, and neither PTSD nor permanent psychological harm is an inevitable outcome of sexual assault.

For some survivors, the distress also involves how they feel about their own body. They may feel dirty, ashamed, or "impure," despite having done nothing wrong. Researchers describe a related experience as mental contamination: a feeling of internal dirtiness that can remain even when there is nothing physically unclean about the person. Washing may not remove it because the feeling is connected to the violation rather than physical dirt. This must be distinguished from actual impurity. The survivor's worth has not changed, even if the assault has affected how they see themselves.

The assault may also affect how survivors understand themselves and their relationships. Self-blame can take the form of questioning why they trusted the person, entered a particular place, or did not recognise danger earlier. These questions judge earlier decisions using knowledge gained only after the assault. The survivor may begin to doubt their own judgement, while difficulties with trust and intimacy can make previously comfortable relationships feel uncertain. Looking less distressed does not necessarily mean someone feels safe again. Recovery can also involve rebuilding confidence in one's choices and a sense of safety with other people. These difficulties are possible consequences of sexual violence, not evidence that the survivor caused it or that their capacity for trust has been permanently lost.

What happens after disclosure also matters. Being blamed, doubted, or told to stop discussing the assault can deepen distress. These responses may leave survivors questioning themselves when they need support. This additional harm is often described as secondary victimisation. By contrast, being listened to and having their

choices respected can support recovery. The aftermath is therefore shaped not only by the assault, but also by how other people respond to it.

Anger is another part of the aftermath that deserves attention. A survivor may feel angry about the violence, the loss of safety, or the betrayal involved. Trauma-related anger can also be accompanied by a heightened sense of threat, leaving the person easily startled, defensive, or struggling to settle after something upsetting happens. Anger is an understandable response to being harmed; feeling it does not, by itself, mean that a survivor will become violent.

This is where emotion regulation becomes relevant. Emotion regulation means recognising feelings and managing how one responds to them. After sexual violence, some survivors may find intense emotions difficult to understand or tolerate, or struggle to continue ordinary activities while distressed. Research has examined how these difficulties relate to PTSD symptoms and feelings of mental contamination. However, difficulty managing emotions should not be treated as proof that a person has lost the ability to make decisions or control their actions. Those are separate questions that require individual assessment.

Responses from institutions can add another layer to these experiences. When an institution that a survivor depends on for protection fails to respond appropriately, this may amount to institutional betrayal. Its consequences, and survivors' experiences of the justice system, require closer examination in the later discussion of when justice fails.

Anger after sexual assault may concern both the violence itself and the response that follows it. This raises a further question: how, in some cases, does a desire for safety, recognition, or accountability develop into a desire for retaliation? Answering that question requires a distinction between feeling anger, imagining revenge, and deciding to act.

5. FROM TRAUMA TO RETALIATION

When a survivor kills the person who assaulted them, the circumstances matter. A killing during an assault raises different questions from one committed months later. Describing both simply as revenge overlooks what the survivor may have been trying to do at that moment: escape, stop further violence, or punish the perpetrator. These situations can be organised into four broad categories. These are categories for analysing the cases, rather than fixed legal classifications, and they may overlap.

The first category is a killing during an assault or an immediate threat of assault. Here, the central question is whether the survivor was acting to stop the violence or escape. The death of the perpetrator does not, by itself, establish a motive of revenge. An intention to survive an attack must be considered separately from a desire to punish someone for it.

The second category is a killing in the immediate aftermath. The assault may have just ended, but it is necessary to examine whether the danger had also ended. Was the survivor still being restrained or threatened? Were they able to leave? Did they believe another attack was about to happen? These questions prevent the phrase "after the assault" from being treated as proof that the survivor was already safe. Equally, the short interval between assault and killing cannot, on its own, establish that the act was defensive or that the survivor had lost control.

The third category involves a killing within a continuing pattern of sexual violence or abuse. In these cases, examining only the final encounter may leave out earlier assaults, threats, and attempts to escape. The analysis must consider the wider circumstances while still asking what happened at the time of the killing. Fear of further harm and anger about past violence may both be relevant; neither should be assumed without examining the evidence.

The fourth category is a delayed killing intended to punish the perpetrator for a past assault. This is the category in which revenge motivation becomes most directly relevant. The questions include whether the act was planned, what the survivor intended to achieve, and whether there was any continuing threat. However, delay alone does not establish revenge, just as planning alone does not explain every aspect of a person's motive.

These distinctions matter because protection and punishment are different purposes, even when a case contains elements of both. They also help separate the circumstances of the killing from the psychological question of why retaliation may begin to feel meaningful.

Revenge involves wanting someone to suffer for the harm they have caused. But what does the survivor believe revenge would change? During the assault, their choices were ignored. Imagining the perpetrator facing consequences may offer a sense of control that was absent during the attack. Goldner, Lev-Wiesel and Simon discuss this possible role of revenge fantasies. Their research concerns thoughts and desires, however, and cannot tell us whether carrying out revenge would help someone recover.

When examining a killing, this leaves several questions. Was the survivor trying to stop another assault, escape ongoing abuse, or punish the perpetrator for what had already happened? Were they seeking safety, or did they want the perpetrator to suffer? These motives may overlap. To understand them, we need to look at the survivor's account, earlier threats, attempts to seek help, and what happened during the killing. Calling the act "revenge" before asking these questions can leave much of the story unexplained.

It is important, however, to distinguish imagining revenge from deciding to carry it out. Qualitative research with sexual assault survivors has documented revenge fantasies as one way some participants expressed their anger. Such accounts help explain the content of survivors' thoughts; they do not establish an intention to kill. A person may imagine the perpetrator suffering without forming a plan or taking any action. Treating these thoughts as evidence of inevitable violence would confuse emotional experience with behaviour.

What happens emotionally after the killing is harder to answer. We cannot assume that the perpetrator's death brings closure. Orth, Montada and Maercker found a connection between revenge feelings and symptoms such as intrusive memories and heightened arousal among victims of violent crime. They did not study what happens when survivors kill their assailants. Their findings therefore cannot tell us whether a particular survivor would feel relief, guilt, regret, or several emotions at once. Those feelings would need to be documented in the individual case. The perpetrator's death alone tells us very little about whether the survivor has recovered from the assault.

The movement from trauma to retaliation must therefore be examined individually. Trauma does not establish a motive, and anger does not establish an intention to kill. Understanding a survivor's reasons requires attention to the threat they faced, their relationship with the perpetrator, and the evidence of what they intended at the time. Psychological explanation is an important part of that examination, but it does not settle the question of responsibility.

This leads to the next issue: when a survivor acts against the person who assaulted them, how should intention, control, and criminal responsibility be assessed? The question requires us to consider both the violence they experienced and the particular circumstances of the act for which they are being judged.

6. When Justice Fails: Intention, Control and Criminal Responsibility

For a survivor of sexual violence, seeking justice can mean wanting protection, recognition of what happened, and accountability for the person responsible. When that process brings disbelief, humiliation, or pressure to remain silent, the survivor may feel that the harm has been dismissed. Human Rights Watch's 2017 report on sexual assault survivors in India documented barriers including difficulties registering complaints, inadequate protection, and gaps in legal and psychological support. These accounts show how seeking justice can itself become another distressing experience. They do not represent every survivor's experience, but they identify failures that cannot be ignored.

This is where perceived injustice becomes relevant. The word "perceived" does not mean that the injustice is imaginary; it refers to how a person understands and

experiences what has happened. A survivor may feel that the perpetrator has escaped consequences while they continue to bear the effects of the assault. Research has found an association between feelings of injustice and revenge desires and fantasies. However, this association does not establish that losing faith in justice causes a person to become violent. It helps explain why retaliation may enter someone's thoughts, without explaining every decision that follows.

A related concept is institutional betrayal. This concerns failures by institutions on which people depend for safety or support, including making abuse difficult to report or responding inadequately when it is disclosed. Smith and Freyd's research examined how such failures can compound sexual trauma. Applied to the concerns of this paper, the question is whether an institution's response leaves a survivor feeling further exposed or abandoned. This is different from treating every disappointing legal outcome as betrayal: an assessment must consider how the person was treated and whether the institution fulfilled its responsibilities.

These experiences help explain the circumstances surrounding retaliation. They do not, by themselves, settle responsibility for a killing. The paper must therefore distinguish between understanding why a survivor acted and deciding what that action means in law.

The first distinction is between **motive and intention**. Motive concerns why someone acts; intention concerns what they mean to do or bring about. A desire for revenge may explain a person's reason for acting, while an intention to cause death concerns the result they seek. The two questions are connected, but they are not interchangeable. For example, saying that a survivor wanted accountability does not answer whether they intended to kill. Equally, identifying anger or resentment does not, on its own, prove an intention to cause death.

This leads to *mens rea*, the mental element required for an offence. Under section 100 of the Bharatiya Nyaya Sanhita 2023, culpable homicide includes causing death with an intention to cause death, an intention to cause bodily injury likely to cause death, or knowledge that the act is likely to cause death. Section 101 specifies when culpable homicide amounts to murder, subject to its exceptions. The inquiry therefore extends beyond whether the accused wanted the person dead.

Planning and impulsive action must also be distinguished carefully. Planning can provide evidence of deliberation, but an absence of advance planning does not automatically exclude an intention to kill. In Pulicherla Nagaraju v State of Andhra Pradesh, the Supreme Court explained that intention must be assessed from the circumstances taken together, including the weapon used, the part of the body targeted, the force involved, prior hostility, and whether the incident arose suddenly or involved premeditation. This is relevant because describing an act as emotional

does not answer what the person intended at the moment it occurred. Equally, evidence of planning does not, by itself, establish revenge as the motive.

Control is another question. Under section 101, Exception 1, grave and sudden provocation resulting in loss of self-control can reduce murder to culpable homicide not amounting to murder, subject to statutory conditions. This is not an acquittal or a general exception for trauma-related anger. A careful analysis must ask what evidence supports the claimed loss of control, rather than assuming either that distress removes responsibility or that any deliberate behaviour proves the absence of distress.

Psychological evidence should therefore be connected to a specific legal question. What does it establish about this person's condition at the relevant time? Does it help explain their account of danger, their understanding of their actions, or the claim that they lost control? A diagnosis alone cannot answer all these questions. Nor should evidence about survivors generally replace an individual assessment.

Section 22's unsoundness-of-mind exception requires incapacity, at the time of the act, to know its nature or that it was wrong or contrary to law, because of unsoundness of mind. PTSD or intense distress does not automatically satisfy this test. The legal significance of psychological evidence depends on what it demonstrates, not simply on the presence of a diagnostic label.

The central difficulty is therefore how to acknowledge the survivor's experiences without allowing those experiences to predetermine the legal conclusion. Institutional failures deserve examination in their own right, even where they do not establish a defence to a later killing. Likewise, assessing responsibility for that killing should not erase the violence the survivor experienced. This brings the discussion to the distinction between self-defence and revenge: when was the action directed towards protection from danger, and when was it directed towards punishment for a past wrong?

7. Legal Distinction Between Self-Defence and Revenge

The distinction between self-defence and revenge depends on the danger faced and the circumstances in which force was used. Self-defence concerns protection against a threat; revenge concerns punishment for a wrong. Where a survivor kills the person who assaulted them, the fact of the earlier assault is relevant, but it does not alone determine whether the killing was lawful.

Under Indian law, self-defence falls within the right of private defence. Section 34 of the Bharatiya Nyaya Sanhita 2023 (BNS) provides that an act committed within this right is not an offence. Section 35 recognises the right to defend one's own body and another person's body. Most directly relevant here, section 38(c) permits the right to extend to causing death where the assault involves an intention to commit rape,

subject to the restrictions in section 37. A person does not have to allow a rape to occur before defending themselves.

Section 40 explains when this protection begins and ends. The right arises when an attempt or threat creates a reasonable apprehension of bodily danger and continues while that apprehension continues. Consequently, the question is not simply whether penetration had begun or whether the assault had momentarily stopped. The court must examine whether the danger was still present. Section 37 nevertheless limits the right: it does not permit more harm than necessary for defence, and it excludes cases where there is time to obtain protection from public authorities.

This creates an important boundary. A survivor defending themselves against an attempted rape may be legally justified in using force that causes death. A survivor who later kills the perpetrator solely to punish a completed assault, after the relevant danger has ended, cannot rely on that past assault alone to establish private defence. The seriousness of the original offence does not create an unrestricted right to kill its perpetrator. Equally, a survivor's anger does not automatically defeat a claim of self-defence: the circumstances must still be examined against the statutory requirements.

The offences committed by the sexual offender and any subsequent offence committed by the survivor therefore require separate legal analysis. The principal provisions are set out below.

Provisions applicable to the sexual offender

BNS provision	**Offence and punishment**
Sections 63 and 64(1)	Section 63 defines rape. Under section 64(1), the ordinary punishment is rigorous imprisonment of at least **10 years**, extending to life imprisonment, and liability to a fine.
Section 64(2)	Covers specified aggravated circumstances, including certain abuses of custody, authority or trust, and repeated rape of the same woman. Punishment is rigorous imprisonment of at least **10 years**, extending to imprisonment for the remainder of natural life, and liability to a fine.
Section 65(1)	Rape of a girl under **16**: rigorous imprisonment of at least **20 years**, extending to imprisonment for the remainder of natural life, and liability to a fine.

Section 65(2)	Rape of a girl under **12**: rigorous imprisonment of at least **20 years**, extending to imprisonment for the remainder of natural life, with a fine; death is an alternative statutory punishment.
Section 70(1)	Gang rape: rigorous imprisonment of at least **20 years**, extending to imprisonment for the remainder of natural life, and a fine.
Section 70(2)	Gang rape of a girl under **18**: imprisonment for the remainder of natural life and a fine, or death.
Sections 74 and 75	Address certain other forms of sexual wrongdoing. Section 74 covers assault or criminal force against a woman with the specified intention or knowledge concerning her "modesty," punishable by **1–5 years' imprisonment** and liability to a fine. Section 75 covers specified sexual harassment, with punishment varying according to the conduct.

These are statutory sentencing ranges; death is not an automatic sentence wherever it is listed as an option. The applicable provision depends on the conduct proved and the circumstances of the offence.

The scope of these provisions also matters. The BNS definition of rape is framed around a male perpetrator and a female victim; it should not be presented as covering every survivor of sexual violence. Where the survivor is under eighteen, the Protection of Children from Sexual Offences Act 2012 (POCSO) also applies, irrespective of the child's gender. Its principal provisions include sections 3–4 for penetrative sexual assault, sections 5–6 for aggravated penetrative sexual assault, and sections 7–10 for sexual assault and its aggravated forms.

Provisions applicable when the survivor kills the perpetrator

Legal finding	Relevant BNS provisions and consequence
The killing falls within lawful private defence	**Sections 34–40**, particularly section 38(c): the act is not an offence.
The survivor exceeds private defence in circumstances satisfying the statutory exception	**Section 101, Exception 2**: the killing may be culpable homicide not amounting to murder. This requires good-faith exercise of private defence, absence of premeditation, and absence of an intention to cause more harm than necessary for defence. Punishment falls under **section 105**.
Grave and sudden provocation satisfies the statutory conditions	**Section 101, Exception 1**: the offence may be reduced from murder to culpable homicide not amounting to murder, punishable under **section 105**. This is not an automatic exemption for survivors or for anger following an assault.

The killing satisfies the definition of murder and no defence or exception applies	**Section 101**, with punishment under **section 103(1)**: death or life imprisonment, and liability to a fine.
The killing amounts to culpable homicide, but not murder	**Sections 100 and 105**: where the relevant intention is established, punishment is life imprisonment or **5–10 years' imprisonment**, and liability to a fine. Where there is the relevant knowledge without the specified intention, punishment may extend to **10 years**, with a fine.

These provisions distinguish complete justification from reduced liability. Lawful private defence means that no offence has been committed. An exception reducing murder to culpable homicide still leaves criminal responsibility and the possibility of substantial punishment.

The central legal question is therefore whether the survivor's act met the conditions of protection, a recognised exception, or unlawful homicide. The original sexual violence must be taken seriously, but its existence cannot replace examination of the later killing. This distinction provides the basis for analysing how courts have responded to survivors who killed their assailants.

8. Real-Life Cases and Judicial Responses

1. Selvi's case (India, 2013)

Facts: Selvi reportedly hit her father-in-law while trying to stop him from raping her. He later died from his injuries. She also had injuries that supported her account of the struggle.

Verdict: A Salem court acquitted Selvi and three members of her family in 2013. Her lawyers argued that she had acted to protect herself and that the police's version of events was incorrect.

Why it matters: This case shows why killing someone while resisting an assault cannot automatically be called revenge. According to the defence, Selvi was trying to protect herself from an attack happening at that moment. The available account is a newspaper report, so the court's full reasoning should not be assumed.

2. Akku Yadav killing (India, 2004; verdict in 2014)

Facts: Akku Yadav was accused of repeatedly sexually assaulting and threatening people in his community. In 2004, a mob killed him inside a Nagpur courtroom.

Verdict: In 2014, the remaining accused were acquitted because the prosecution could not prove their involvement through reliable evidence.

Why it matters: The case raises the question of what happens when people believe that the authorities will not protect them. However, the acquittal does not mean that the court approved of revenge. It means that the evidence was not strong enough to convict the people on trial.

3. Kiranjit Ahluwalia (England and Wales, 1992)

Facts: Kiranjit Ahluwalia killed her husband after years of reported physical and sexual abuse. She was initially convicted of murder and sentenced to life imprisonment.

Verdict: Her murder conviction was overturned, and a retrial was ordered. She later pleaded guilty to manslaughter on the grounds of diminished responsibility. She was released because she had already served the sentence imposed.

Why it matters: Her case shows why the years before a killing can matter when assessing responsibility. The abuse and evidence about her mental condition were relevant to the outcome. However, the court did not declare that she had acted in lawful self-defence; she remained convicted of a lesser offence.

4. Cyntoia Brown (United States, 2006–2019)

Facts: At sixteen, Cyntoia Brown killed Johnny Allen, who had taken her home for sexual intercourse. She said that she feared for her life. Her case also involved a wider history of sexual exploitation.

Verdict: She was convicted of first-degree murder and aggravated robbery and sentenced to life imprisonment. In 2019, Tennessee's governor reduced her sentence, allowing her release after fifteen years.

Why it matters: Being released does not always mean that a court has found someone innocent. Brown received clemency from the governor. Her punishment was reduced, but her conviction was not overturned on the basis of self-defence.

5. Chrystul Kizer (United States, 2022–2024)

Facts: Chrystul Kizer was seventeen when she killed Randall Volar. She said that he had sexually abused and trafficked her.

Verdict: In 2022, Wisconsin's Supreme Court ruled that the state's trafficking defence could apply even to a charge of first-degree intentional homicide, provided its conditions were met. It did not decide that Kizer had proved her defence. She later pleaded guilty to second-degree reckless homicide and received eleven years in prison, followed by five years of extended supervision.

Why it matters: Being allowed to raise a defence is different from successfully proving it. Kizer's case opened a legal route for considering the effects of trafficking, but it did not end in an acquittal.

6. Sara Kruzan (United States, 1995–2022)

Facts: As a teenager, Sara Kruzan killed the man who had sexually exploited and trafficked her.

Verdict: She was initially sentenced to life imprisonment without parole. Her sentence was later reduced, and she was released on parole in 2013. In 2022, California's governor granted her a full pardon.

Why it matters: Kruzan's case raises questions about how children who have been exploited are treated when they commit serious offences. Her eventual pardon did not change the fact that she had spent years in prison before receiving that relief. It was also a decision by the governor, rather than a court accepting self-defence.

7. Valérie Bacot (France, 2021)

Facts: Valérie Bacot killed Daniel Polette after years of sexual abuse and exploitation.

Verdict: She received a four-year prison sentence, with three years suspended. Since she had already spent one year in custody, she did not have to return to prison.

Why it matters: The court held her responsible for the killing, but the sentence required no further imprisonment. This shows the difference between being acquitted and receiving a more lenient punishment. A court can recognise the circumstances surrounding a killing without declaring it lawful.

8. Brittany Smith (United States, 2020)

Facts: Brittany Smith killed Todd Smith after alleging that he had raped and strangled her. She said that she fired during a confrontation in which her brother was also in danger.

Verdict: A judge rejected her request for immunity under Alabama's stand-your-ground law. She later pleaded guilty to murder and received a twenty-year sentence structured as a split sentence, rather than twenty years of immediate imprisonment.

Why it matters: This case shows that a survivor's explanation for using force may not satisfy the legal requirements for protection from prosecution. It also matters that Smith pleaded guilty: her case did not end with a jury accepting or rejecting her account at a full trial.

9. Justice, Morality and the Limits of Law

Does an act become morally justified because the person committing it has suffered a terrible wrong? When a survivor kills their assailant, this question becomes difficult to answer without considering both people's actions. The survivor's suffering demands recognition, but deciding what the perpetrator deserves raises a separate question about the limits of punishment.

Retributive justice holds that wrongdoing deserves a proportionate punishment. It gives weight to the survivor's demand that the offence should have consequences. However, it also requires limits: the seriousness of a crime does not make every possible punishment deserved. Wanting an offender held accountable is therefore different from establishing that their death is a morally proportionate response.

Utilitarianism approaches the issue through consequences. It asks which response would reduce harm and promote overall wellbeing. Applied to retaliation, someone might argue that killing an offender prevents further assaults. Yet this argument must also account for the consequences of allowing individuals to decide guilt and impose irreversible punishment, including mistakes and further violence. The survivor's future matters too. An ethical assessment cannot count the offender's removal as a benefit while ignoring the consequences for the person who killed them. This is an application of the consequentialist approach to punishment, rather than proof that retaliation produces any particular outcome.

There is also a problem with treating punishment as the whole meaning of justice. Where does that leave the victim? A sentence may acknowledge the wrong, but the survivor may still need safety, financial assistance, or the opportunity to continue their education. The UN's Declaration of Basic Principles of Justice for Victims recognises dignity, assistance, and compensation alongside access to justice. These needs should not become secondary simply because punishment attracts more public attention.

Restorative justice offers another perspective by asking how the harm can be addressed and how the offender can take responsibility. It may involve acknowledgement, reparation, or facilitated communication. However, in sexual violence cases, participation must be genuinely voluntary and carefully assessed for safety. It cannot become pressure to forgive, meet the offender, or accept a settlement. A survivor's refusal to participate must be respected.

The competing ethical arguments therefore concern more than whether revenge is understandable. One argument asks us to consider how much can fairly be demanded from someone who has suffered violence and received little protection. Another asks whether that suffering can give a person the authority to end another life. Recognising the force of the first argument does not make the second disappear.

The position taken here is that moral understanding does not require unconditional approval. A survivor's actions can deserve compassion and still require scrutiny. Equally, disapproving of a killing should not become an excuse to dismiss the original assault.

The limits of law become clear at this point. A court must reach a decision, but no verdict can fully measure a person's suffering or restore what was lost. Legal justice remains necessary because decisions about punishment require evidence, consistency, and safeguards. Its moral adequacy also depends on whether the survivor's dignity and needs remain visible throughout that process.

10. Conclusion

This paper examined the killing of sexual assailants through psychological, legal, and ethical perspectives. Its central finding is that these cases cannot be understood through the killing alone. The circumstances of the assault, any continuing danger, the survivor's intention, and the evidence available all affect how the later act should be assessed.

The cases reviewed produced different outcomes, including acquittals, reduced convictions, sentencing relief, and executive clemency. These differences matter. They show that recognising a survivor's experiences does not lead to one automatic legal result. They also caution against describing every release as acceptance of self-defence or every conviction as proof that the abuse was disregarded.

The research considered does not establish that retaliation is an inevitable consequence of trauma or a reliable means of recovery. Nor does this paper argue for a general right to kill a sexual offender. It argues for individual assessment and for a response to sexual violence that takes protection and support seriously before another act of violence occurs.

The proposed reforms consequently focus on accessible assistance, fair and trauma-informed procedures, accountability for failures of protection, and clear consideration of relevant abuse evidence. Their effectiveness would require further research and evaluation beyond the scope of this paper.

Ultimately, this research concerns what remains unanswered when a survivor seeks protection and does not receive it. The responsibility for an unlawful killing must still be examined, but so must the failures that preceded it. A survivor should not have to become the accused before the harm done to them receives sustained attention.

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